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Whereas in Jewish and Christian theology, “Creation” refers to God’s primal relation to all of humanity and indeed to the world as a whole, “Revelation” refers to the imposition of God’s will as law, in-scription, and pre-scription on a particular people. The core of this Revelation is the Ten Commandments, a text at once so relentlessly commonplace and so morally exhausting that it hardly seems to bear, let alone elicit, re-reading. For many of us, it is filed away in the furthest reaches of our learning, rendered inaccessible to higher thought by the very primitiveness of its first acquisition. The Decalogue is so close to us that it is invisible, so familiar that it is largely forgotten, and so (apparently) simple that it is most frequently recollected in the form of the joke and the error, the stutter and the laugh.

In their commentaries, the rabbis linked the sublimity of God’s name ‘the unspeakable Tetragrammaton’ to the extraordinary event of God’s direct address to the Jewish people assembled at Sinai. Rashi argued that God spoke the entire set of commandments in a single incomprehensible and terrifying utterance; Maimonides added that God’s speech lacked distinct phonemes; another commentary suggested that God’s voice was so singular that it brooked no echo.¹ Following such lines of thought, Lacan’s commentary emphasizes God’s name as the first of the Ten Commandments:

Lacan insists on the fundamental untranslatability between the Hebrew name of God and the Greek philosophy of Being. Rather than a statement of predication or identity, of the form “A=A,” the oral repetition and incomplete semanticization of God’s name in the phrase “I am that I am” crystallizes its nonsensical character. It is this name which God speaks at the outset of the Decalogue, and the Jewish tradition counts this line as the first of the Ten Commandments. This first sentence cannot be taken as a declaration of existence, a definition of substance, or an exhortation of faith (though it has been read in all of these ways). The Ten Commandments, and especially this initial one, are at once creative, legislative, and descriptive, instating within the apparently simple form of the statement a God otherwise than Being.

The commandment calls up the cacophony of human activity – sons and daughters, slaves and cattle, settlers and strangers – in order to bring it to a momentary stillness, suspending the apparently endless momentum of the human universe in its natural rhythms and economic exigencies. The commandment keys the Sabbath to the seventh day of divine non-activity that completes the six days of Creation in Genesis. If the world was “finished” on the sixth day, what did God still have to create on the seventh day? According to the rabbis, God created *rest* on the seventh day. God completed the world by subtracting something from it, namely his own activity. The seventh day punctuates the unfolding of time, operating as a grammatical period, a full stop that cuts short the profusion of creation and retroactively instills it with lack and hence with the possibility of symbolic significance.

The injunction to cease all work for one day a week, Lacan notes, ran counter to the needs of people living on the margins of subsistence. Rest indeed occurred in Mediterranean antiquity, but it

¹Rashi. *Chumash with Rashi*, vol. 2, ed. A. M. Silbermann (London: Routledge and Kegan Paul, 1934), 102; Maimonides cited in S.Y. Agnon, *Present at Sinai: The Giving of the Law*, trans. Michael Swirsky (Philadelphia: Jewish Publication Society, 1994), 206; *Midrash Rabbah*, vol. 3, trans. H. Freedman (London: Soncino Press, 1983), 336.

was the luxury of the few ' the philosophers and the kings – and their *otium* was sustained only by the *negotium* of the many. The Romans, champions of the work ethic in one of its early permutations, were reputedly horrified by the sloth and waste implied by the Jewish Sabbath.² Although the Sabbath can be rationalized as a technique of increasing human production by allowing for a rest period ' hence the Romans would ultimately adopt the idea of a "weekend" in order to maximize productivity – the commandment itself in no way rationalizes rest as a principle of social utility.³ The rest mandated by the Sabbath is not functional, remaining instead a principal of anti-economy lodged at the heart of the West's cultural, philosophical, and monetary economies.

One might think that the Tenth Commandment is designed to discipline desire, reinforcing the propriety of property by staking its claims in the very interior of the self. Yet Lacan distinguishes the field of this commandment from that of "anything that I might desire." Its real thrust, Lacan argues, is directed at the traumatic Thing from whose cancellation the social world arises. The commandment "preserves the distance from the Thing" without dissolving it, insofar as the commandment sustains and sequesters a traumatic nearness, the proximity of the originary *Nebenmensch* of the subject's earliest contacts. This spacing, moreover, is ethical insofar as it can itself be separated out from the symbolic complex of naming as a new creative void, to be re-deployed, re-initiated, re-constructed ' *sublimated* – in the subject's relationships to all who neighbor on its desire.

The discourse of rights is founded on the privacy and self-possession of the person; the specter of a lie-detector offends the liberal subject because it would trespass on the inalienability of the inner self, its interiority supremely manifested in the freedom of expression. In its symbolic dimension, as a support of the social order, the Ninth Commandment tries to guarantee the stability and value of language. We rebel against such a commandment because we lie all the time ' in the compromise-formations of dreams, poetry, and social arrangements, in every act of speech. But what we traduce is not a hidden truth or human essence, but something that itself belies the humanist discourse of rights: the Thing that expropriates subjectivity prior to all property. In Lacan's reading, the Decalogue is the *envers* of the Rights of Man and the Bill of Rights. Rights defend the proprieties of the person, in order to protect the free exercise of expression and exchange ("the pursuit of happiness"). The Decalogue, however, asserts the fundamental limiting of the subject's freedoms by *responsibility for the neighbor*, a response-ability to the extimate fragment of the real that the subject is called to confront ("the pursuit by *jouissance*").

3. Yet, it is precisely because of the Decalogue's deadening proximity to our earliest memories of knowledge itself in its condition as pure inscription and brute *techne* that it calls for a work of rereading, of active de-familiarization and re-familiarization. Such a work was initiated by Jacques Lacan in his seminar on the ethics of psychoanalysis. In his brief but astute commentary, Lacan suggests that the Decalogue stages the alienation of the subject by a singular signifier, installs that same subject within the rule of speech at the expense of the imaginary, and organizes the subject's desire in relation to the *jouissance* of the neighbor. Levinas wrote of Revelation that "Its word comes from elsewhere, from outside, and, at the same time, lives within the person receiving it."⁴ This essay attempts to disclose the logic that places revelation in its heteronomous, scriptural, and arbitrary character at the heart of

²For midrashim on Roman reactions to the Jewish Sabbath, see Hayim Nahman Bialik and Hana Ravnitzky Yehoshua, eds. *The Book of Legends: Sefer Ha-Aggadah: Legends from the Talmud and Midrash*, trans. William G. Braude (New York: Schocken Books, 1992), 250 and 380.

³Philo of Alexandria, a Hellenistic Jew responding to the challenges of philosophy and of Greco-Roman values, defends the Sabbath on utilitarian grounds. See *The Special Laws*, vol. 2 of *The Works of Philo*, trans. C. D. Yonge (Peabody, MA: Hendrickson Pubs., 1993), 60.

⁴Levinas, "Revelation in the Jewish Tradition," in *The Levinas Reader*, ed. Sean Hand (Cambridge: Blackwell) 194.

Western subjectivity and its psychoanalytic interpretation, opening it to ethical reclamation in the present moment.

4. The first tablet of the Decalogue concerns man's relation to *God's name* in its radical singularity and unpronounceability: In their commentaries, the rabbis linked the sublimity of God's name – the unspeakable Tetragrammaton – to the extraordinary event of God's direct address to the Jewish people assembled at Sinai. Rashi argued that God spoke the entire set of commandments in a single incomprehensible and terrifying utterance; Maimonides added that God's speech lacked distinct phonemes; another commentary suggested that God's voice was so singular that it brooked no echo.[3] Following such lines of thought, Lacan's commentary emphasizes God's name as the first of the Ten Commandments: Lacan insists on the fundamental untranslatability between the Hebrew name of God and the Greek philosophy of Being. Rather than a statement of predication or identity, of the form "A=A," the oral repetition and incomplete semanticization of God's name in the phrase "I am that I am" crystallizes its nonsensical character. It is this name which God speaks at the outset of the Decalogue, and the Jewish tradition counts this line as the first of the Ten Commandments. This first sentence cannot be taken as a declaration of existence, a definition of substance, or an exhortation of faith (though it has been read in all of these ways). The Ten Commandments, and especially this initial one, are at once creative, legislative, and descriptive, instating within the apparently simple form of the statement a God otherwise than Being.

God spoke all these words, saying, I the Lord [YHVH] am your God who brought you out of the land of Egypt, the house of bondage: You shall have no other gods besides Me. (Ex. 20:1-3).⁵

I must leave to one side the huge questions posed by the promulgation of these commandments by something that announces itself in the following form: 'I am what I am' [*Ehyeh-Asher-Ehyeh*]. It is, in effect, necessary not to draw the text in the direction of Greek metaphysics by translating as 'he who is,' or 'he who am.' The English translation, 'I am that I am,' is, according to Hebrew scholars, the closest to what is meant by the formulation of the verse.⁶

5. In the election of the Israelites as God's people, the proper name YHVH functions as the primary signifier Lacan will call S1, the signifier without signified that anchors the subject within a particular constellation of the symbolic order through a cataclysmic encounter with language in its materiality, as sheer command, as pure revelation without rhyme or reason. The letters of the Tetragrammaton suggest the verb of being, and thus promise a semantic content that would wed it to ontology, yet the conventions surrounding its articulation sustain the Name as a talismanic set of letters that cannot be translated into any definitive etymology or meaning.
6. The second commandment, against idolatry, links this primary signifier to the chain of all other signifiers in the act of barring the realm of the image. In Lacan's formulation, in the prohibition against idolatry, "the elimination of the function of the imaginary presents itself ... as the principle of the relation to the symbolic ... that is to say, to speech" (81).

⁵For all citations from The Bible, see Nahum H. Sarna (ed.) *The JPS Torah and Commentary*, 5 vols. (Philadelphia: Jewish Publication Society, 1989).

⁶The first tablet of the Decalogue concerns man's relation to *God's name* in its radical singularity and unpronounceability:

The third commandment, “You shall not take the name of the Lord your God in vain” (Ex. 20:7), sequesters the name in its status as primary signifier, maintaining the force of its primal repression: keeping it sacred, but also *keeping it away*, preventing its creative-destructive power from bleeding into the language of the everyday. Together, these three initial commandments establish the singularity of God’s name in relation to the plurality of the signifying chain.

7. The Fourth Commandment, which institutes the Sabbath, turns to the world of human activity as regulated by the Name of God: The commandment calls up the cacophony of human activity – sons and daughters, slaves and cattle, settlers and strangers – in order to bring it to a momentary stillness, suspending the apparently endless momentum of the human universe in its natural rhythms and economic exigencies. The commandment keys the Sabbath to the seventh day of divine non-activity that completes the six days of Creation in Genesis. If the world was “finished” on the sixth day, what did God still have to create on the seventh day? According to the rabbis, God created *rest* on the seventh day. God completed the world by subtracting something from it, namely his own activity. The seventh day punctuates the unfolding of time, operating as a grammatical period, a full stop that cuts short the profusion of creation and retroactively instills it with lack and hence with the possibility of symbolic significance.

Remember the sabbath day and keep it holy. Six days you shall labor and do all your work, but the seventh day is a sabbath to the Lord [YHVH] your God: you shall not do any work ‘ you, your son or daughter, your male or female slave, or your cattle, or the stranger who is within your settlements. For in six days the Lord [YHVH] made heaven and earth and sea, and all that is in them, and He rested on the seventh day; therefore the Lord [YHVH] blessed the sabbath day and hallowed it. (Ex 20: 8-11)

8. Lacan captures the scandal of the Sabbath in a suggestive “aside” that addresses the function of the Sabbath as itself a “setting-aside,” a ritualized intermission in the ordinary flow of social intercourse:

I leave aside the question of rest on the sabbath day. But I believe that that extraordinary commandment, according to which, in a land of masters, we observe one day out of seven without work ‘ such that according to humorous proverbs, the common man is left no happy medium between the labor of love and the most stultifying boredom ‘ that suspension, that emptiness, clearly introduces into human life the sign of a gap, a beyond relative to every law of utility. It seems to me, therefore, that it has the most intimate relationship to something that we are on the track of here. (81)

9. The Fourth Commandment aligns the lacuna in the temporal sequence marked by the seventh day with the place held by God’s unspeakable name in the procession of signifiers. Out of the string of days, one day is marked off as a break in time: the Sabbath. Out of the string of signifiers, one is held in abeyance: the name of God. The subject of religion falls out of the petty pace of tomorrow and tomorrow and tomorrow, signifying in the nothing of that suspension the possibility of a subject. Lacan’s famous dictum, “a signifier represents the subject for another signifier,” as mathematized in the Master’s Discourse, describes this creation of the subject out of the *nihil* that interrupts the symbolic circuit of alienation. Such a subject is the crown of creation *ex nihilo*, insofar as both the subject and creation are defined

by a *nihil* or Nothing, cut off from their natural cycles by the de-naturing of time imposed by the Sabbath.

10. Franz Rosenzweig identifies Redemption with a final Sabbath in which God himself is redeemed: "Redemption is his day of rest, his great Sabbath ... Redemption redeems God by releasing him from his revealed name."⁷ The revealed Law of the Sabbath is not only a reminder of Creation but its remainder; as such, it anticipates Redemption, the space-time of sublimation in which the subject may find some relief from the enslavement of the letter. Subjectivization emerges in the space inserted by the Sabbath between Creation and Revelation; sabbatical sublimation holds open the Master's discourse, preventing it from freezing into the totalitarianism of the closed discourse of the Other. In the words of Walter Benjamin, one of Rosenzweig's strongest readers, "every second of time was the strait gate through which the Messiah might enter."⁸ The weekly punctuation of the Sabbath casts redemption not as an imaginary conclusion to the historical process, but as an ever-present opening in the signifying chain, the self-difference of every moment produced by the anxious expectation of time's end.
11. The fourth commandment, then, begins to move the Decalogue away from a discourse of pure alienation, since the gap introduced by the Sabbath is what allows for the possibility of subjectivization. The subject of religion, that is, only emerges in the decompletion of the symbolic universe, through the positive addition to the cosmos of an instance of negation, of suspended activity. In this moment of ar-rest, the subject comes forward as the bearer of the lack that has engendered him, in relation to an as yet unrealized positivity beyond lack, as its remainder or "rest." That remainder of enjoyment left over by symbolic alienation is the central concern of the Second Tablet, taking shape as the *jouissance* of the neighbor.
12. The neighbor instantiates the barest minimum of a social relationship, in excess of family yet falling short of the polis. Lacan follows Freud in locating *das Ding* at the heart of the *Nebenmensch* or "next man," whom I must "love as myself" precisely because he is the bearer of both intolerable difference and uncanny similarity. The second tablet unfolds without reference to God's name at all, its absence clearing the space for the proximity embodied by the neighbor. Each of these commandments can be put into the service of social utility by asserting the inviolability of property ' the propriety of the person (murder), of the sexual relationship (adultery), and of objects (theft), extending into the purity of speech and the codification of desire itself. Yet Lacan's project is to set the second tablet of the Decalogue precisely against the world of social utility. According to Lacan, the Second Tablet attempts to regulate, but also to approach, the uncomfortable proximity of the Thing personified by the neighbor.
13. If the first word of the Decalogue announces God's name, its last word is "neighbor": "You shall not covet your neighbor's house: you shall not covet your neighbor's wife, or his male or female slave, or his ox or his ass, or anything that is your neighbor's" (Ex. 20:14). Lacan glosses the Tenth commandment in relation to the *Nebenmensch* of Freud:

It begins at the moment when the subject poses the question of that good he had unconsciously sought in the social structures. And it is at that moment, too, that

⁷The Fourth Commandment, which institutes the Sabbath, turns to the world of human activity as regulated by the Name of God:

⁸Walter Benjamin, *Illuminations*, ed. Hannah Arendt, trans. Harry Zohn (New York: Schocken Books, 1969), 264.

he is led to discover the deep relationship as a result of which that which presents itself as a law is closely tied to the very structure of desire. If he doesn't discover right away the final desire that Freudian inquiry has discovered as the desire of incest, he discovers that which articulates his conduct so that the object of his desire is always maintained at a certain distance. But this distance is not complete; it is a distance that is called proximity, which is not identical to the subject, which is literally close to it [*proche*], in the way that one can say that the *Nebenmensch* that Freud speaks of as the foundation of the thing is his neighbor [*prochain*]. (75-76)

14. Behind the display of coveted goods, the Tenth Commandment shelters the *object*, the product or residue of the Master's Discourse. The mobilization of the symbolic order creates the subject through barring it. The primordial *jouissance* avoided in the articulation of signifiers, however, leaves a by-product, "the remainder (*reste*)" called the "*objet a*."⁹ The subject wrests from the Other some bit of the *jouissance* lost in alienation, and masks or fills out the Other's inconsistency with the object of fantasy, which affords the subject its only *jouissance*, its only claim to being. Lacan calls this process "separation," referring both to the primordial constitution of *das Ding* as _"the first thing that separated itself from everything the subject began to name and articulate" and to the subject's later encounters with the *objet a* left over by symbolic processes. Through these encounters with an object separate from but proximate to both the Other and the subject, the subject may find some relief from the alienating effects of the Master's Discourse. By creating a renewed space for itself *vis à vis jouissance*, the subject may establish new possibilities for a social ethics of the real. Such an ethics would not be based on the repudiation or defamation of the neighbor's *jouissance*. This ethics of separation would, in Lacan's phrase, "preserve the distance" from the neighbor, sublimating the neighbor's *jouissance* into the place of the Thing, calling for its elevation and dignification, the restoration of its position of alterity, but not its replacement or repression.
15. Lacan's longest commentary goes to the Ninth Commandment, against false witness: The discourse of rights is founded on the privacy and self-possession of the person; the specter of a lie-detector offends the liberal subject because it would trespass on the inalienability of the inner self, its interiority supremely manifested in the freedom of expression. In its symbolic dimension, as a support of the social order, the Ninth Commandment tries to guarantee the stability and value of language. We rebel against such a commandment because we lie all the time – in the compromise-formations of dreams, poetry, and social arrangements, in every act of speech. But what we traduce is not a hidden truth or human essence, but something that itself belies the humanist discourse of rights: the Thing that expropriates subjectivity prior to all property. In Lacan's reading, the Decalogue is the *envers* of the Rights of Man and the Bill of Rights. Rights defend the proprieties of the person, in order to protect the free exercise of expression and exchange ("the pursuit of happiness"). The Decalogue, however, asserts the fundamental limiting of the subject's freedoms by *responsibility for the neighbor*, a response-ability to the extimate fragment of the real that the subject is called to confront ("the pursuit by *jouissance*").

I am going to give you a proof that is to my mind nevertheless valid. It concerns Proudhon's famous phrase: 'Property is theft.' Another proof is that of the cries of anguish lawyers emit whenever it is a question, in some more or less grotesque and

⁹Jacques Lacan, *The Seminar Book XX: Encore; On Feminine Sexuality and the Limits of Love and Knowledge*, 1972-73, established by Jacques-Alain Miller, trans. Bruce Fink (New York: Norton, 1998), 6.

mythical form, of using a lie detector. Must we conclude from this that the respect of the human person involves the right to lie? Surely, it is a question and not an answer to reply 'yes, certainly.' One might say, it's not so simple. (82)

16. Lacan's analysis invites a more systematic comparison between the Decalogue and the Bill of Rights that might point us towards future readings of the Decalogue in the field of contemporary social and ethical practice. At first glance, the two documents appear to have much in common. Both are composed of a set of ten carefully organized pronouncements. Both are legal documents, pre-scribing rather than de-scribing human action. Both are nation-founding law codes: the first establishes the nation of Israel in the Hebrew Bible, and the second forms the first ten amendments to the U.S. Constitution. Yet, in the basic structure and import of their formulation, they are in fact almost direct opposites of each other. In telling us what we should and should not do, the Ten Commandments limit freedom rather than preserve it.
17. The Bill of Rights, on the other hand, is written in the third person ("Congress shall make no law ..."; "No soldier shall"; "No person shall be held ..."). If it were addressed to anyone, it would not be to individual citizens, but rather to the government as a symbolic agency. Rather than telling citizens what they should or should not do, these constitutional amendments protect the freedom of citizens by limiting the scope of government. The Decalogues establishes a set of *responsibilities* towards God and neighbor, whereas the Bill of Rights defines our separation from the divine and social orders. The framers of the Bill of Rights understood themselves as protecting these rights, not inventing them; the government itself is seen as an expression of "We, the people," an articulation of their common sense and common interests. Rights belong to reason; commandments belong to revelation, coming to us from a speaker who is fundamentally other than us, namely God.
18. The impeachment crisis of 1999 took place in part as a conflict between Commandments and Rights. Kenneth Starr's inquiry attempted to hold the Symbolic Father to the strictest accounting of the Ten Commandments, at the expense of constitutional Rights 'not only the president's rights, but the principle of rights that his elected position embodies. If liberalism puts the Rights of the Individual in the place of the Commandments concerning the Neighbor, at the furthest extreme of the liberal tradition, Rights threatened to turn back into Commandments, as our highest elected official, expected to incarnate "pure office," to be equivalent to his legal function, degraded back into the Obscene Father of the most archaic social organizations.
19. At stake was the split between the President's Two Bodies ' "the president vs. the Presidency" ' and the trauma caused by their scandalous separation. The Europeans seemed to understand that the President is necessarily divided between his legal function as the pure embodiment of equality (= equality of rights) and the mythic privilege of libertine transgression (=transgression of commandments). This could even be considered a central formula of the fantasy of Western democracy: *He who defends Rights must break Commandments*. For what else are Rights than rights to break the commandments ' to tell lies (freedom of expression), to have secret sexual relations (right to privacy), to covet and even steal one's neighbors' goods (free enterprise and the pursuit of happiness), and even, in certain situations and definitions, to kill (the right to bear arms, the right to self-defense, and the right to abortion)? On the other side of the liberal cancellation of the Ten Commandments by the Bill of Rights, the Decalogue has re-emerged in perverse form, at once commanding transgression and drawing out its punishment in the public theatre of false witness. The challenge of the present moment is to

think the negative intersection between Rights and Commandments, in the process re-opening the radicality of each. If we read Rights in terms of Commandments, that is, in terms of a response to the Other, perhaps we can preserve the emancipatory potential of Rights without risking cooption by their assimilatory and neo-colonial deployments. Conversely, if we read Commandments in terms of Rights, above all the right to enjoy, perhaps we can shake up the disciplinary and utilitarian functionalizations of the Decalogue in order to recover the sheltering of *jouissance* at its core.

- Introduction - Julia Reinhard Lupton, University of California Irvine.
- Creation - Richard Halpern, University of California Berkeley.
- Redemption - Gregg Lambert, Syracuse University.

Notes

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¹⁰ Jacques Lacan, *Le séminaire, livre VII: L'éthique de la psychanalyse, 1959-60*, established by Jacques-Alain Miller (Paris: Seuil, 1986); trans. by Dennis Porter as *The Seminar of Jacques Lacan, Book VII: The Ethics of Psychoanalysis, 1959-1960* (NY: Norton, 1986), 81.

¹¹ Franz Rosenzweig, *The Star of Redemption*, trans. from the Second Edition of 1930 by William W. Hallo (Notre Dame: University of Notre Dame Press, 1985), 383.

¹⁰The first tablet of the Decalogue concerns man's relation to God's name in its radical singularity and unpronounceability:

¹¹The Fourth Commandment, which institutes the Sabbath, turns to the world of human activity as regulated by the Name of God: